

CHAPTER 18.

An Act to amend subsection (4) of section nine of
the Workmen's Compensation Act, 1925.

[11th June 1931.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1.—(1) Subsection (4) of section nine of the Workmen's Compensation Act, 1925, is hereby repealed, and the following subsection shall be substituted therefor :—

Amendment
of 15 & 16
Geo. 5. c. 84.
s. 9 (4).

“(4) If a workman who has so far recovered
from the injury as to be fit for employment of a
certain kind has failed to obtain employment and
it appears to the county court judge either—

- (i) that, having regard to all the circumstances,
it is probable that the workman would,
but for the continuing effects of the injury,
be able to obtain work in the same grade
in the same class of employment as before
the accident; or
- (ii) that his failure to obtain employment is a
consequence, wholly or mainly, of the
injury,

the judge shall order that the workman's incapacity shall be treated as total incapacity resulting from the injury for such period, and subject to such conditions, as may be provided by the order, without prejudice, however, to the right of review conferred by this Act :

Provided that—

- (i) no order shall be made under this subsection if it appears to the judge that the workman has not taken all reasonable steps to obtain employment; and

- (ii) every such order shall be made subject to the condition that it shall cease to be in force if the workman receives unemployment benefit.” •

(2) As from the passing of this Act the provisions of the subsection so substituted as aforesaid shall apply in any case where the accident happened on or after the first day of January, nineteen hundred and twenty-four, and an application for weekly payments to be reviewed in accordance with those provisions may be made, notwithstanding that there has not been any change in the condition of the workman or any change of circumstances other than the passing of this Act.

Short title.

2. This Act may be cited as the Workmen's Compensation Act, 1931, and the Workmen's Compensation Acts, 1925 to 1930, and this Act may be cited together as the Workmen's Compensation Acts, 1925 to 1931.

CHAPTER 19.

An Act to amend section one of the Widows', Orphans' and Old Age Contributory Pensions Act, 1929, so as to define for the purposes of the said section one the meaning of the expression “normal occupation,” and so as to entitle to widows' pensions the widows of men who attained the age of seventy on or before the fifteenth day of July, nineteen hundred and twelve, and died on or after the fourth day of January, nineteen hundred and twenty-six, and whose normal occupation was at some time within three years before the date on which they attained the said age of a certain kind; and for purposes consequential upon the purposes aforesaid. [11th June 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present